



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

June 10, 2024

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 20705
(THIRD REVISION)

EXPIRATION DATE: 2028-05-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Exhaust Center, Inc.
Mira Loma, CA
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the manufacture, mark, sale and use of non-DOT specification steel Intermediate Bulk Containers (IBCs) conforming to the requirements of UN31A except for capacity conforming to all regulations applicable to a DOT specification or UN standard (except as specified herein), for the transportation in commerce of the materials authorized by this special permit. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. In accordance with 49 CFR 107.107(a) party status may not be granted to a manufacturing permit. These packagings may be used in accordance with 49 CFR 173.22a.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171- 180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 177.834(h) in that the IBC is unloaded while on a motor vehicle and § 178.700(c)(1) in that the size of the authorized package is less than 119 gallons.

Tracking Number: 2024045136

5. BASIS: This special permit is based on the application of Exhaust Center, Inc. dated April 24, 2024, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Diesel fuel	3	NA1993	III
Ethanol or Ethyl alcohol or Ethanol solutions or Ethyl alcohol solutions	3	UN1170	II
Ethanol or Ethyl alcohol or Ethanol solutions or Ethyl alcohol solutions	3	UN1170	III
Flammable liquids, n.o.s.	3	UN1993	II
Flammable liquids, n.o.s.	3	UN1993	III
Fuel, aviation, turbine engine	3	UN1863	II
Fuel, aviation, turbine engine	3	UN1863	III
Gasoline includes gasoline mixed with ethyl alcohol, with not more than 10% alcohol	3	UN1203	II
Kerosene	3	UN1223	III
Methanol	3	UN1230	II
Ethanol and gasoline mixture or Ethanol and motor spirit mixture or Ethanol and petrol mixture, with more than 10% ethanol	3	UN3475	II

7. SAFETY CONTROL MEASURES:

a. PACKAGING:

- (1) The prescribed packagings are non-DOT specification steel intermediate bulk containers (IBCs) used for refueling. Each IBC must be constructed of hot

rolled, cold rolled, or aluminized steel and it must conform to all the requirements for a UN31A intermediate bulk container (IBC), except its water capacity is less than 450L (119 gallons).

(2) Packagings must be manufactured in accordance with the following ECI drawings on file with the Office of Hazardous Materials Safety (OHMS): ECIDRW0022 Revision A dated January 31, 2019, ECIDRW0046 Revision - dated August 10, 2020, ECIDRW0047 Revision – dated August 7, 2020, and ECIDRW0048 Revision – dated August 10, 2020.

(3) Each packaging must be equipped with a safety venting system to prevent a buildup of internal pressure. The venting system must consist of a roll over vent that minimizes the amount of fuel spillage in the event the IBC is flipped upside down. A protective cover must be attached to the top of the IBC with the purpose of protecting its extremities: fuel withdraw fittings, fuel pump, fuel filter with protective housing, electrical wiring, fuel pump control panel. Hose and nozzle will be stored in a recess on the side of the IBC.

b. TESTING: All IBCs must be pressure tested two times before being sold: (1) one full dunk immersion into water, and (2) one air pressure test to ensure installed fittings are sealed. All IBCs must meet the testing and certification requirements specified in § 178.803 for metal IBCs. IBCs manufactured and sold with the pump attached must be tested with the pump attached. Each IBC must be periodically retested every 2.5 years in accordance with the requirements of § 180.352.

c. OPERATIONAL CONTROLS:

(1) IBCs must be attended at all times during loading and unloading operations by a qualified person. For the purposes of this requirement, “attended” and “qualified” must have the meanings described in § 177.834(i)(3) and (4), respectively.

(2) Pumps and hoses may be attached to discharge outlets during transportation if:

(i) The discharge outlet is at the highest point of the IBC. A roll over vent must be installed to minimize the amount of fuel spillage in the event of a roll over,

(ii) The highest points of the attached pump, hoses, and IBC remain below the “safe zone” line. The “safe zone” line is defined as a line from five inches below the roof of the vehicle to the top of the vehicle’s tailgate,

(iii) The pump hose and nozzle are locked to the pump using a keyed or combination lock during transportation, and

(iv) The operator has emptied the contents of the hose by inverting the polarity of the attached pump and pumping from the hose into the IBC for a minimum of 15 seconds.

(v) The tank is secured using the manufacturer's supplied tie down method.

(3) IBCs may not be manifolded together.

(4) Electrical power must be disconnected from the pump during transportation.

(5) Each IBC must be marked and labeled or placarded in accordance with the requirements for IBCs in § 172.514.

(6) Each IBC may not exceed a capacity of 50 gallons.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

b. A person who is not a holder of this special permit, but receives a packaging covered by this special permit, may reoffer it for transportation provided no modification or change is made to the packaging and it is offered for transportation in conformance with this special permit and the HMR.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

d. Each packaging manufactured under the authority of this special permit must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Special Permits and Approvals for a specific manufacturing facility.

e. A current copy of this special permit must be maintained at each facility where the packaging is manufactured under this special permit. It must be made available to a DOT representative upon request.

- f. A test report documenting satisfactory testing of IBCs manufactured and fitted with pumps (see the requirements of § 178.800) must be on file with OHMSAPD prior to the sale of such IBCs.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: KH